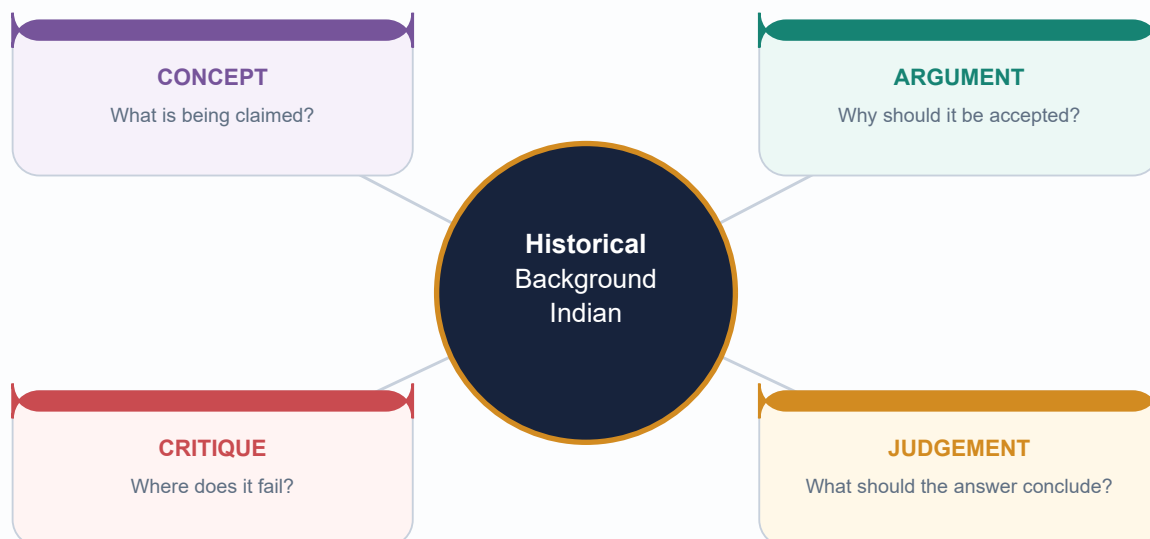


UPSC INDIAN POLITY

Historical Background of the Indian Constitution Deep-Learning Export

Subject: Indian Polity | Topic: Historical Background | GS-I and GS-II
Coverage: 1600-1947 | Company Rule | Crown Rule | Constitutional Legacy
Progress: 12 integrated modules | Foundation + Advanced + Answer Writing
Export date: 09 August 2026



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Module 1 - From Trading Company to Territorial Power

GS-I / GS-II
Indian Polity

NEWS TRIGGER

INFERENCE: Contemporary debates on decolonising laws and institutions are easier to assess when their East India Company and Crown-era origins are understood.

INTRO & ORIGIN

FACT: The East India Company entered India as a commercial corporation under a royal charter of 1600. Its acquisition of the Diwani of Bengal, Bihar and Orissa in 1765 transformed it into a revenue-collecting territorial power.

The constitutional story begins when Parliament had to control a private company that was exercising public power. British statutes gradually converted commercial authority into a centralised colonial state.

TIMELINE

1600 - East India Company received a royal charter.

1765 - Company obtained Diwani rights in Bengal, Bihar and Orissa.

1773 - Parliament began systematic regulation of Company government.

1858 - British Crown assumed direct control after the Revolt of 1857.

1947 - British rule ended and India became independent.

THE CONSTITUTIONAL TRANSFORMATION

Commerce becomes government

V

Trade A chartered company seeks commercial privileges.	Revenue Diwani supplies fiscal and judicial authority.
Territory Company administration acquires sovereign features.	Regulation Parliament progressively controls the colonial state.

KEY DATA

Phase	Period	Controlling authority	Core constitutional trend
Commercial expansion	1600-1765	East India Company	Trade privileges and factories
Company Rule	1773-1858	Company under Parliament	Centralisation and parliamentary control
Crown Rule	1858-1947	British Crown and Parliament	Representation, devolution and limited responsibility
Independent India	From 1947	People of India	Sovereign constitution-making

STATIC THEORY

- FACT: Company Rule and Crown Rule are the two principal phases used to organise this chapter.
- FACT: British constitutional reforms were incremental, controlled and designed primarily for imperial governance.
- INFERENCE: Indian constitutionalism emerged through both institutional inheritance and nationalist rejection of colonial limits.

MEMORY HOOK

1600 trade -> 1765 revenue -> 1773 regulation -> 1858 Crown -> 1947 sovereignty

MUST-KNOW FACTS

1. The Company's 1765 Diwani marked its transition into a territorial-fiscal power.
2. The Regulating Act, 1773 was the first major parliamentary intervention in Company administration.
3. The Government of India Act, 1858 ended Company rule.
4. The Indian Independence Act, 1947 ended British rule.

UPSC TRAPS

WRONG: Company Rule began with the Company's arrival in 1600.

CORRECT: For constitutional study, Company Rule is generally organised from the Regulating Act, 1773.

WRONG: The Diwani was merely a trading concession.

CORRECT: It conferred revenue and civil-justice authority and made the Company a territorial power.

MAINS ANGLE

Use the trade-to-state transition to show why colonial constitutional development began as a problem of regulating private power rather than establishing democracy.

STUDY LINK

Polity -> Historical Background ->
Constitutional evolution under British rule

HIGH**Module 2 - Parliamentary Control: 1773 to 1786**

GS-I / GS-II
Indian Polity

INTRO & ORIGIN

FACT: The Regulating Act, 1773 initiated central administration and parliamentary supervision. The Settlement Act, 1781 clarified jurisdiction, while Pitt's India Act, 1784 established political control through the Board of Control.

Administrative disorder, conflict between Company institutions and concern over misgovernment forced Parliament to build an oversight structure without immediately abolishing the Company.

TIMELINE

1773 - Governor-General of Bengal and Supreme Court provided for.

1774 - Supreme Court at Calcutta was established.

1781 - Settlement Act limited jurisdictional conflict.

1784 - Board of Control created; dual control formalised.

1786 - Cornwallis received power to override his council.

KEY DATA

Act	Institutional change	Exam keyword
Regulating Act, 1773	Governor-General of Bengal with four-member council	Warren Hastings
Regulating Act, 1773	Supreme Court at Calcutta	One Chief Justice + three judges
Settlement Act, 1781	Clarified court jurisdiction and personal-law application	Revenue matters excluded
Pitt's India Act, 1784	Court of Directors + Board of Control	Double government
Act of 1786	Override power and Commander-in-Chief role	Lord Cornwallis

HOW BRITISH CONTROL TIGHTENED**STATIC THEORY**

- FACT: Bombay and Madras were subordinated to the Governor-General of Bengal in important matters under the 1773 framework.
- FACT: Pitt's India Act distinguished commercial functions from political functions.
- FACT: Company territories were described as British possessions in India under the 1784 framework.
- INFERENCE: The phase established executive centralisation before representative government.

MEMORY HOOK

1773 regulates | 1781 reconciles | 1784 controls | 1786 empowers

MUST-KNOW FACTS

1. Warren Hastings was the first Governor-General of Bengal.
2. The Regulating Act provided for the Supreme Court; the Court opened in 1774.
3. The Board of Control handled political affairs while the Court of Directors retained commercial management.

UPSC TRAPS

- WRONG:** The Regulating Act created the Governor-General of India.
- CORRECT:** It created the Governor-General of Bengal; the Governor-General of India came in 1833.
- WRONG:** The Supreme Court was established in 1773.
- CORRECT:** The Act was passed in 1773; the Supreme Court at Calcutta was established in 1774.
- WRONG:** Pitt's India Act ended Company administration.
- CORRECT:** It strengthened British political supervision while retaining Company administration.

MAINS ANGLE

The 1773-1786 reforms created an accountability architecture, but accountability ran upward to Britain rather than downward to the Indian population.

STUDY LINK

Polity -> Historical Background -> Regulating Act and Pitt's India Act

HIGH

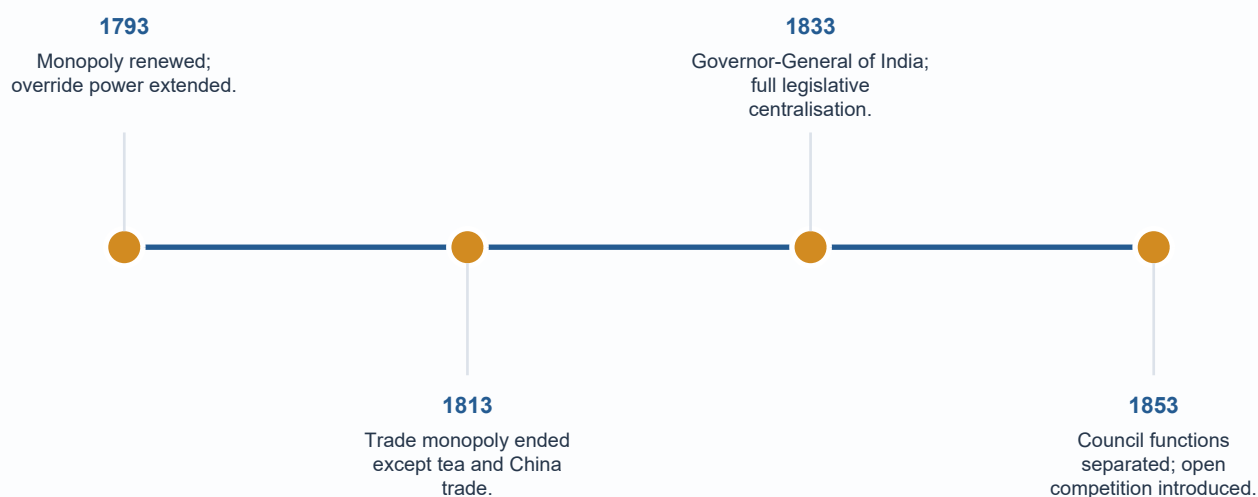
Module 3 - Charter Acts and Administrative Centralisation

GS-I / GS-II
Indian Polity

INTRO & ORIGIN

FACT: The Charter Acts progressively reduced the Company's commercial role, centralised legislation and opened civil-service recruitment. By 1833 the Company had become a purely administrative body.

Renewal of the Company's charter allowed Parliament to redesign Indian governance at roughly twenty-year intervals and align it with British commercial and political interests.

CHARTER ACT PROGRESSION**KEY DATA**

Act	Commercial effect	Constitutional effect
Charter Act, 1793	Monopoly extended for 20 years	Override power extended to future Governors-General
Charter Act, 1813	Monopoly ended except tea and China	Crown sovereignty asserted; missionaries admitted
Charter Act, 1833	Company ceased commercial activity	Governor-General of India; legislative centralisation
Charter Act, 1853	No fixed renewal term	Legislative-executive separation; open civil-service competition

STATIC THEORY

- FACT: Lord William Bentinck was the first Governor-General of India under the 1833 Act.
- FACT: Bombay and Madras lost legislative powers under the 1833 centralising framework.
- FACT: The 1833 attempt to introduce open competition was not implemented because of opposition from the Court of Directors.
- FACT: The 1853 Act added legislative councillors and produced a central legislative council resembling a mini-parliament.
- FACT: The Macaulay Committee of 1854 followed the open-competition provision.

MEMORY HOOK

1813 partial trade end | 1833 complete trade end | 1853 competitive recruitment

MUST-KNOW FACTS

1. The 1833 Act changed the Governor-General of Bengal into the Governor-General of India.
2. Laws made after 1833 were called Acts rather than Regulations.
3. The 1853 Act was the last Charter Act.
4. The 1853 Act introduced local representation in the central legislative machinery.

UPSC TRAPS

WRONG: The 1813 Act completely ended the Company's trade monopoly.

CORRECT: Tea and trade with China remained exceptions until 1833.

WRONG: Open civil-service competition began under the 1833 Act.

CORRECT: The 1833 proposal was defeated; the 1853 Act introduced the competitive principle.

WRONG: The 1853 Act abolished the East India Company.

CORRECT: The Government of India Act, 1858 abolished Company rule.

MAINS ANGLE

The Charter Acts reveal a shift from mercantilism to administrative imperialism: commercial monopoly declined while centralised state capacity expanded.

STUDY LINK

Polity -> Historical Background -> Charter Acts 1793, 1813, 1833 and 1853

HIGH

Module 4 - Crown Takeover under the Government of India Act, 1858

GS-I / GS-II
Indian Polity

NEWS TRIGGER

INFERENCE: The distinction between titular authority and actual executive control remains useful when tracing the later evolution of constitutional heads.

INTRO & ORIGIN

FACT: Enacted after the Revolt of 1857, the Government of India Act, 1858 abolished Company government and transferred administration to the British Crown.

The revolt exposed the political risks of ruling India through a chartered company. Britain replaced indirect corporate rule with direct imperial responsibility.

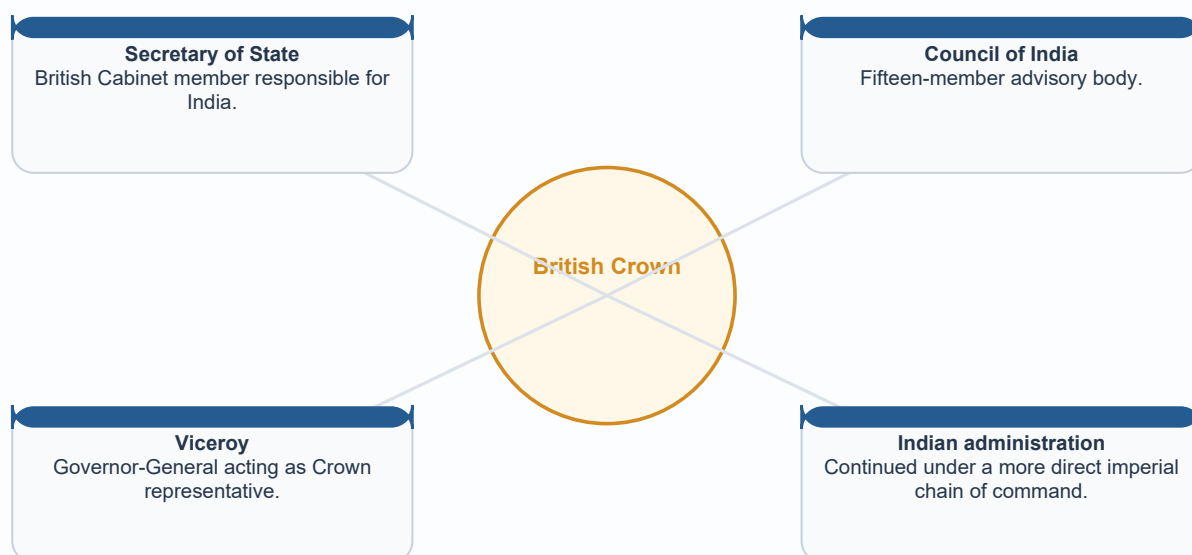
TIMELINE

1857 - Revolt challenged Company authority.

1858 - Government of India Act transferred rule to the Crown.

1858 - Lord Canning became the first Viceroy.

THE 1858 CONTROL STRUCTURE



KEY DATA

Before 1858	After 1858	Constitutional meaning
East India Company	British Crown	Direct imperial government
Court of Directors	Secretary of State for India	Control moved into British Cabinet government
Board of Control	Secretary of State and Council	Dual control ended
Governor-General	Governor-General and Viceroy	Same office acquired Crown-representative title

STATIC THEORY

- FACT: The Act was also known as the Act for the Good Government of India.
- FACT: The Court of Directors and Board of Control were abolished.
- FACT: The Secretary of State for India was assisted by a fifteen-member Council of India.
- FACT: Lord Canning was both the last Governor-General under Company rule and the first Viceroy under Crown rule.
- INFERENCE: The reform changed the controlling authority, not the colonial and unrepresentative nature of government.

MEMORY HOOK

1858 = Company out | Crown in | Viceroy + Secretary of State

MUST-KNOW FACTS

1. The title Viceroy indicated the Governor-General's role as the Crown's representative.
2. The Governor-General's office did not disappear in 1858.
3. The Secretary of State exercised control from Britain.

UPSC TRAPS

WRONG: The office of Governor-General was abolished in 1858.

CORRECT: The office continued; its holder additionally became Viceroy.

WRONG: The Viceroy was a separate office below the Governor-General.

CORRECT: Both titles were held by the same person for different representative functions.

MAINS ANGLE

The 1858 Act constitutionalised direct imperial accountability in Britain but did not create responsible government in India.

STUDY LINK

Polity -> Historical Background -> Government of India Act 1858

HIGH

Module 5 - Representation without Responsibility: 1861 and 1892

GS-I / GS-II
Indian Polity**INTRO & ORIGIN**

FACT: The Indian Councils Acts of 1861 and 1892 introduced controlled Indian association, legislative decentralisation and limited deliberative functions without making the executive responsible to the legislature.

After 1857, the Raj sought cooperation from Indian elites while retaining official control. Participation was introduced through nomination and indirect recommendation.

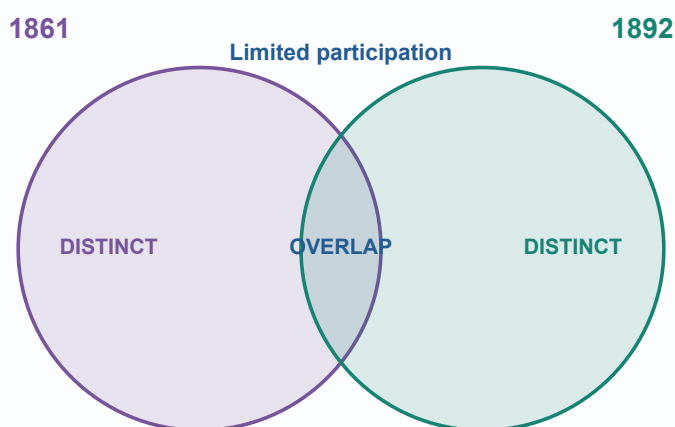
TIMELINE

1859 - Canning introduced the portfolio system.

1861 - Portfolio system recognised and legislative decentralisation begun.

1862 - Indian non-official members nominated to the Viceroy's council.

1892 - Budget discussion, questions and indirect electoral principle expanded.

1861 AND 1892 COMPARED**1861**

- Indians nominated for law-making
- Legislative powers restored to Bombay and Madras
- Portfolio and ordinance systems recognised

Limited participation

- No responsible government
- Official executive dominance
- Restricted Indian voice

1892

- More non-official members
- Budget discussion and questions
- Indirect election through recommendation

The reform path moved from association to deliberation, not yet to executive accountability.

STATIC THEORY

- FACT: The 1861 Act is associated with the beginning of representative institutions.
- FACT: It restored legislative powers to Bombay and Madras, reversing part of the 1833 centralisation.
- FACT: The Viceroy could issue ordinances with a six-month life.
- FACT: The 1892 Act did not use the word election, though recommendation introduced an indirect electoral element.
- FACT: The 1892 councils could discuss the budget and ask questions but could not control the executive.

MEMORY HOOK

1861 = nomination and decentralisation | 1892 = discussion and indirect election

MUST-KNOW FACTS

1. The 1861 nominees included the Raja of Benaras, Maharaja of Patiala and Sir Dinkar Rao.
2. Official control survived both reforms.
3. Budget discussion did not amount to voting control over public finance.

UPSC TRAPS

WRONG: The 1861 Act introduced direct elections.

CORRECT: It used nomination; an indirect electoral principle appeared in 1892.

WRONG: The 1892 Act established responsible government.

CORRECT: It widened discussion but did not make the executive accountable to the councils.

MAINS ANGLE

The Acts demonstrate the colonial strategy of inclusion without power: Indian participation expanded, while executive responsibility remained absent.

STUDY LINK

Polity -> Historical Background -> Indian Councils Acts 1861 and 1892

HIGH**Module 6 - Morley-Minto Reforms, 1909**

GS-I / GS-II
Indian Polity

INTRO & ORIGIN

FACT: The Indian Councils Act, 1909 enlarged legislative councils and admitted an Indian to the Viceroy's Executive Council, but its defining feature was the separate electorate for Muslims.

The reform responded to growing nationalist pressure while protecting imperial control through differentiated political representation.

THE 1909 REFORM PACKAGE

Participation + communal separation

V

Larger councils Central legislative council membership expanded.	Indian executive entry Satyendra Prasad Sinha became Law Member.
Separate electorate Muslim voters elected Muslim representatives.	No responsibility Executive control and central official majority remained.

KEY DATA

Feature	Position under 1909	UPSC significance
Central council	Expanded from 16 to 60	Numerical enlargement
Majority	Official at Centre; non-official in provinces	Non-official is not necessarily elected or anti-government
Executive Council	S.P. Sinha appointed Law Member	First Indian in Viceroy's Executive Council
Electorate	Separate electorate for Muslims	Institutionalised communal representation

STATIC THEORY

- FACT: The reforms are associated with Secretary of State Morley and Viceroy Minto.
- FACT: Lord Minto is described as the Father of Communal Electorate.
- FACT: Separate electorates meant representation was organised through community-specific voter rolls.
- INFERENCE: The reform widened participation while fragmenting the emerging political public.

MEMORY HOOK

1909 = Morley-Minto = Muslim separate electorate

MUST-KNOW FACTS

1. Satyendra Prasad Sinha was the first Indian in the Viceroy's Executive Council.
2. The 1909 Act did not introduce dyarchy.
3. A non-official majority was not the same as an elected nationalist majority.

UPSC TRAPS

- WRONG:** Morley-Minto reforms introduced dyarchy.
- CORRECT:** Dyarchy in provinces was introduced by the Government of India Act, 1919.
- WRONG:** The 1909 Act established responsible government.
- CORRECT:** It enlarged representation without making the executive responsible.

MAINS ANGLE

Assess 1909 as a dual reform: it increased Indian presence but constitutionalised communal political identity.

STUDY LINK

Polity -> Historical Background -> Indian Councils Act 1909

HIGH**Module 7 - Government of India Act, 1919 and Dyarchy**GS-I / GS-II
Indian Polity**INTRO & ORIGIN**

FACT: The Montagu-Chelmsford reforms introduced dyarchy in provinces, central bicameralism, direct elections and a clearer separation of central and provincial subjects.

The reform attempted a controlled advance toward responsible government while reserving decisive departments and overriding powers for colonial authorities.

KEY DATA

Feature	1919 arrangement	Constitutional importance
Provincial government	Dyarchy	Partial ministerial responsibility
Central legislature	Council of State + Legislative Assembly	First bicameralism at Centre
Elections	Direct, but franchise restricted	Electoral politics expanded
Communal representation	Extended beyond Muslims	Separate electorates widened
Public service	Central PSC provided for; established in 1926	Institutional recruitment
Review	Statutory commission after ten years	Basis for Simon Commission

PROVINCIAL DYARCHY**1. Provincial subjects divided**

One provincial sphere was split into reserved and transferred categories.

V

2. Reserved subjects

Governor and executive council handled areas such as finance and police.

V

3. Transferred subjects

Ministers responsible to the legislature handled areas such as education and public health.

V

4. Structural conflict

Responsibility existed without full control over finance or coercive authority.

STATIC THEORY

- FACT: The Act came into force in 1921.
- FACT: Central and provincial subjects were separated, though the constitutional structure remained unitary.
- FACT: Three of six members of the Viceroy's Executive Council, excluding the Commander-in-Chief, were to be Indian.
- FACT: The Act created the office of High Commissioner for India in London.
- FACT: Provincial budgets were separated from the central budget.
- INFERENCE: Dyarchy failed because transferred responsibility depended on finance and authority retained in the reserved sphere.

MEMORY HOOK

1919 = provincial dyarchy + central bicameralism + direct election

MUST-KNOW FACTS

1. Dyarchy means double rule.
2. Finance was reserved, while education was transferred.
3. The Central Public Service Commission was established in 1926.
4. The statutory-review provision led to the Simon Commission.

UPSC TRAPS

WRONG: The 1919 Act introduced provincial autonomy.

CORRECT: It introduced provincial dyarchy; provincial autonomy came under the 1935 Act.

WRONG: The 1919 Act created a federal constitution.

CORRECT: It separated subjects but retained a unitary constitutional structure.

WRONG: Direct election meant universal adult franchise.

CORRECT: The franchise remained limited by property, tax and educational qualifications.

MAINS ANGLE

Dyarchy illustrates the contradiction of colonial reform: ministers were made answerable for outcomes without being given control over the strongest instruments of government.

STUDY LINK

Polity -> Historical Background -> Government of India Act 1919

HIGH

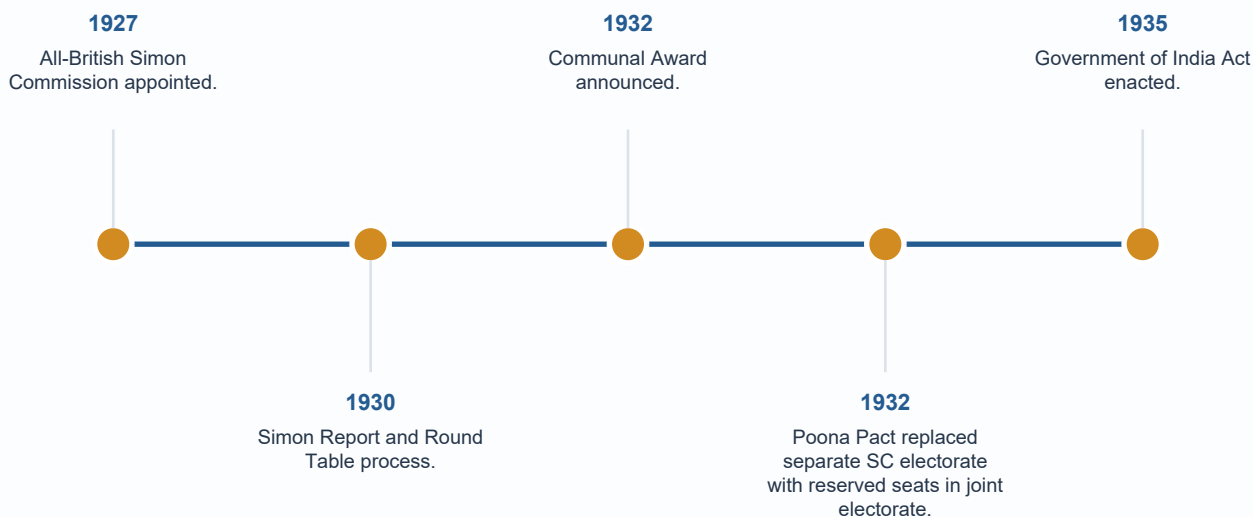
Module 8 - Simon Commission, Communal Award and Poona Pact

GS-I / GS-II
Indian Polity

INTRO & ORIGIN

FACT: The Simon Commission review initiated a chain of reports and conferences leading to the 1935 Act. The Communal Award and Poona Pact shaped the method of political representation for the depressed classes.

The 1919 Act required a statutory review. Simultaneously, the colonial state used community-based representation to manage political demands.

THE REFORM CHAIN TO 1935

KEY DATA

Development	Core proposal/result	Exam distinction
Simon Commission	Abolish provincial dyarchy; responsible provincial government; federation	Seven members, all British
Round Table Conferences	Negotiated constitutional future	Part of process, not a statute
Communal Award	Separate electorate extended to depressed classes	Announced by Ramsay MacDonald
Poona Pact	Reserved seats within joint electorate	Agreement after Gandhi's fast

STATIC THEORY

- FACT: The Simon Commission was boycotted because it had no Indian member.
- FACT: Its recommendations fed into the Round Table Conferences, White Paper and Joint Select Committee process.
- FACT: The Communal Award extended separate electorates to the depressed classes.
- FACT: The Poona Pact retained joint electorates while increasing reserved representation.
- INFERENCE: The dispute involved both protection of disadvantaged representation and the political effects of separate communal electorates.

MEMORY HOOK

Simon -> RTCs -> White Paper -> Joint Committee -> 1935 Act

MUST-KNOW FACTS

1. Ramsay MacDonald announced the Communal Award in 1932.
2. The Poona Pact did not abolish reserved seats.
3. The Pact changed the electoral method from separate to joint electorate for depressed classes.

UPSC TRAPS

WRONG: The Poona Pact removed political reservation for depressed classes.

CORRECT: It retained reserved seats but within a joint electorate.

WRONG: The Simon Commission directly enacted the 1935 Act.

CORRECT: Its report was one stage in a longer conference, White Paper and committee process.

MAINS ANGLE

Frame the Award-Pact debate as a tension between autonomous group representation and integration within a common electoral system.

STUDY LINK

History and Polity -> Simon Commission -> Communal Award -> Poona Pact

HIGH**Module 9 - Government of India Act, 1935**

GS-I / GS-II
Indian Polity

INTRO & ORIGIN

FACT: With 321 sections and 10 schedules, the Government of India Act, 1935 was the most extensive colonial constitutional statute and the largest institutional source of the Constitution of India.

The Act consolidated proposals emerging from the Simon process, Round Table Conferences, White Paper and parliamentary scrutiny.

THE 1935 CONSTITUTIONAL DESIGN

Federation proposed, provinces empowered

V

Federation British Indian provinces and princely states; never commenced.	Autonomy Provincial dyarchy abolished and responsible ministries introduced.
Distribution Federal, Provincial and Concurrent Lists created.	Institutions RBI, Federal Court and public-service commissions provided.

KEY DATA

Dimension	Provision	Operational status
All-India Federation	Provinces + princely states	Never formed
Legislative lists	Federal 59; Provincial 54; Concurrent 36	Federal distribution designed
Residuary subjects	Allocated by Governor-General	Not vested automatically in provinces
Provincial dyarchy	Abolished	Provincial autonomy operated from 1937
Central dyarchy	Introduced in federal design	Never operated
Provincial bicameralism	Six of eleven provinces	Limited territorial application
Federal Court	Provided by Act	Established in 1937
Franchise	About ten percent of population	Still highly restricted

STATIC THEORY

- FACT: Bicameralism applied to Bengal, Bombay, Madras, Bihar, Assam and the United Provinces.
- FACT: The Council of India was abolished.
- FACT: Separate electorates were extended to additional groups, including women and labour.
- FACT: Federal, Provincial and Joint Public Service Commissions were provided.
- FACT: Provincial autonomy functioned during 1937-1939.
- INFERENCE: The Act combined federal ideas with strong discretionary and emergency powers in colonial hands.

MEMORY HOOK

1935 = autonomy in provinces | dyarchy planned at Centre | federation never formed

MUST-KNOW FACTS

1. The proposed federation depended on princely-state accession and never commenced.
2. Provincial autonomy actually operated.
3. Central dyarchy never became operational.
4. The Reserve Bank of India and Federal Court are key institutional associations.

UPSC TRAPS

WRONG: The 1935 federation was established.

CORRECT: It never commenced because the required princely-state participation did not materialise.

WRONG: The Act introduced dyarchy in provinces.

CORRECT: It abolished provincial dyarchy and proposed dyarchy at the Centre.

WRONG: Residuary powers went to provinces.

CORRECT: The Governor-General had authority to allocate residuary subjects.

WRONG: Provincial autonomy meant full sovereignty.

CORRECT: Governors retained special responsibilities and discretionary powers.

MAINS ANGLE

The 1935 Act supplied administrative architecture but not democratic sovereignty. India retained useful institutions while replacing colonial supremacy with popular constitutionalism.

STUDY LINK

Polity -> Historical Background -> Government of India Act 1935 -> Sources of Constitution

HIGH**Module 10 - Indian Independence Act, 1947**GS-I / GS-II
Indian Polity**INTRO & ORIGIN**

FACT: The Indian Independence Act, 1947 ended British rule, partitioned British India into two dominions and recognised the full legislative authority of their Constituent Assemblies.

Prime Minister Clement Attlee's announcement of 20 February 1947 and the Mountbatten Plan of 3 June 1947 supplied the immediate political framework for transfer of power.

TIMELINE

20 Feb 1947 - Attlee announced transfer of power by June 1948.

3 Jun 1947 - Mountbatten Plan accepted partition framework.

18 Jul 1947 - Indian Independence Act received royal assent.

15 Aug 1947 - India became an independent Dominion.

26 Jan 1950 - India became a republic under its Constitution.

TRANSFER OF SOVEREIGNTY**1. British rule terminated**

Parliament ended imperial authority over British India.

V

2. Two Dominions created

India and Pakistan received independent Dominion status.

V

3. Paramountcy lapsed

British treaty authority over princely states ended.

V

4. Constituent Assemblies empowered

They could legislate, repeal British laws and frame constitutions.

V

5. Interim continuity

Government continued substantially under the adapted 1935 Act until new constitutions.

STATIC THEORY

- FACT: The office of Viceroy was abolished; each Dominion was to have a Governor-General.
- FACT: The office of Secretary of State for India was abolished.
- FACT: British paramountcy over princely states lapsed.
- FACT: Governors-General and Governors were to function as constitutional heads on ministerial advice.
- FACT: The title Emperor of India was dropped.
- FACT: Dominion status in 1947 and republican status in 1950 are distinct constitutional stages.

MEMORY HOOK

1947 = independence + partition + paramountcy lapse + sovereign Constituent Assemblies

MUST-KNOW FACTS

1. The Act did not itself make India a republic.
2. The Constituent Assembly also functioned as the Dominion legislature.
3. The adapted 1935 Act remained the interim governance framework.
4. Princely states were legally released from British paramountcy.

UPSC TRAPS

WRONG: India became a republic on 15 August 1947.

CORRECT: India became an independent Dominion in 1947 and a republic on 26 January 1950.

WRONG: The Independence Act integrated all princely states into India automatically.

CORRECT: It ended paramountcy; integration required political accession and consolidation.

WRONG: The Constituent Assembly remained legally subordinate to British Parliament after the Act.

CORRECT: The Act granted the Dominion legislature and Constituent Assembly full law-making authority.

MAINS ANGLE

The Act converted the Constituent Assembly from a body created under a British plan into a legally sovereign constitution-making and legislative authority.

STUDY LINK

Polity -> Historical Background -> Indian Independence Act 1947 -> Constituent Assembly

HIGH

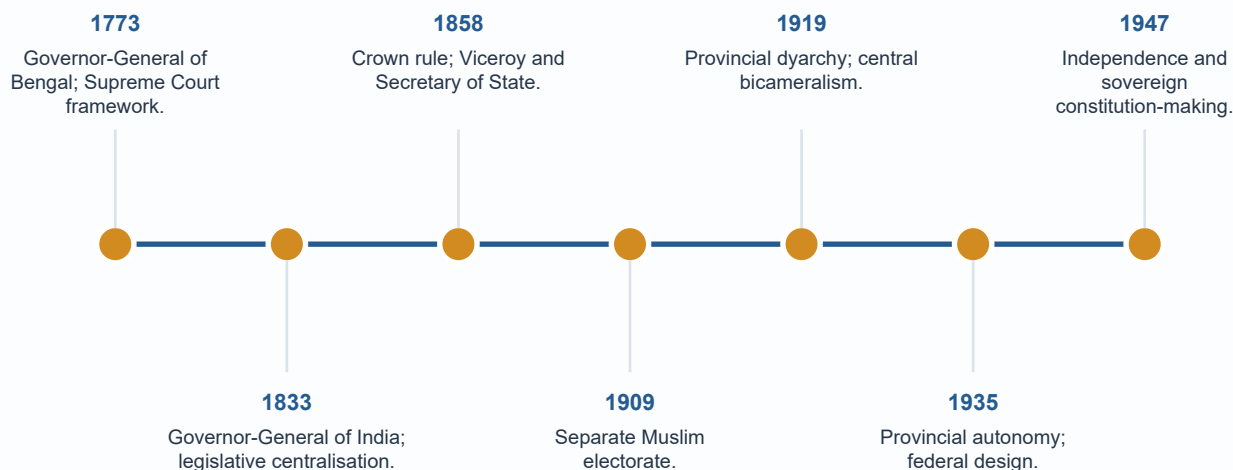
Module 11 - Integrated Firsts, Chronology and Prelims Recall

Prelims / GS-II
Indian Polity

INTRO & ORIGIN

This module compresses the chapter into high-yield institutional firsts and a chronological chain. Use it for final revision, not as a substitute for conceptual understanding.

MASTER CONSTITUTIONAL TIMELINE



KEY DATA

Institutional first	Act	Recall point
Governor-General of Bengal	Regulating Act, 1773	Warren Hastings
Supreme Court at Calcutta	Regulating Act, 1773	Established in 1774
Board of Control	Pitt's India Act, 1784	Political supervision
Governor-General of India	Charter Act, 1833	William Bentinck
Legislative-executive separation in GG council	Charter Act, 1853	Open competition principle
Viceroy	Government of India Act, 1858	Lord Canning
Indians associated with law-making	Indian Councils Act, 1861	Nominated non-official members
Separate Muslim electorate	Indian Councils Act, 1909	Morley-Minto
Indian in Viceroy's Executive Council	Indian Councils Act, 1909	S.P. Sinha
Provincial dyarchy	Government of India Act, 1919	Reserved and transferred subjects
Provincial autonomy	Government of India Act, 1935	Dyarchy abolished in provinces
Independent Dominions	Indian Independence Act, 1947	India and Pakistan

STATIC THEORY

- Sequence discipline is essential: 1909 separate electorate, 1919 dyarchy, 1935 provincial autonomy.
- Track titles separately: Governor-General of Bengal, Governor-General of India and Viceroy.
- Track proposals separately from implementation: the 1935 federation and central dyarchy never operated.
- Track law separately from event: the 1773 Act provided for a Supreme Court established in 1774.

MEMORY HOOK

73 Bengal | 33 India | 58 Viceroy | 09 electorate | 19 dyarchy | 35 autonomy | 47 freedom

MUST-KNOW FACTS

1. The 1935 Act was the largest source of constitutional administrative provisions.
2. The 1909-1919-1935 reform sequence is among the chapter's most common trap areas.
3. Implementation status is often more important than the text of a proposal.

UPSC TRAPS

WRONG: Every institution provided by an Act immediately became operational.

CORRECT: Always verify commencement: the 1935 federation and central dyarchy never operated.

WRONG: All firsts concern elected democratic institutions.

CORRECT: Many firsts concern colonial centralisation, judicial control or nominated participation.

MAINS ANGLE

A strong answer should use chronology selectively to support an argument, rather than reproduce a list of statutes.

STUDY LINK

Polity -> Historical Background -> Rapid revision and Prelims firsts

HIGH

Module 12 - Colonial Legacy, Constitutional Continuity and Mains Synthesis

GS-II Indian
Polity

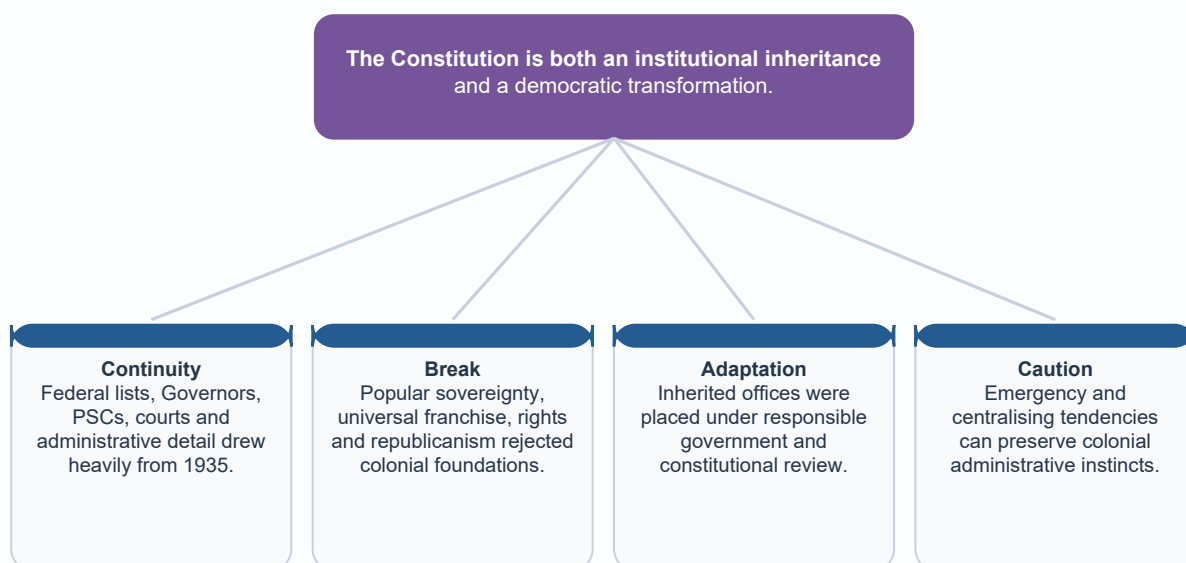
NEWS TRIGGER

INFERENCE: Debates on decolonising criminal law, administrative culture and the office of Governor show that legal replacement and institutional transformation are related but distinct processes.

INTRO & ORIGIN

FACT: Independent India inherited major administrative features from colonial statutes, especially the Government of India Act, 1935. The Constitution retained useful machinery but transformed its source, purpose and accountability.

Constitution-makers faced a dual task: preserve governability during transition and replace imperial supremacy with popular sovereignty, rights, responsible government and judicially enforceable constitutional limits.

HOW TO JUDGE THE COLONIAL LEGACY

KEY DATA

Colonial inheritance	Constitutional transformation	Analytical use
Federal and provincial lists	Union, State and Concurrent Lists under a sovereign Constitution	Continuity in technique, change in legitimacy
Office of Governor	Constitutional head generally acting on ministerial advice	Adapted institution with contested discretionary space
Public Service Commissions	Constitutionally protected recruitment bodies	Administrative continuity with constitutional safeguards
Federal Court	Supreme Court with constitutional jurisdiction	Judicial institution enlarged and democratised
Restricted franchise	Universal adult suffrage	Fundamental democratic rupture
Colonial executive supremacy	Responsible government and judicial review	Power placed under constitutional accountability

STATIC THEORY

- FACT: The Constitution borrowed administrative mechanisms but did not inherit colonial sovereignty.
- FACT: Universal adult franchise marked a decisive departure from the limited colonial electorate.
- FACT: Fundamental Rights and judicial review imposed constitutional limits absent from imperial executive supremacy.
- INFERENCE: Institutional continuity was necessary for stability, but democratic legitimacy required redesign of authority and accountability.
- INFERENCE: Decolonisation is incomplete if only statutory names change while coercive or unaccountable administrative practices persist.

MEMORY HOOK

Retain machinery | reject imperial purpose | democratise authority | constitutionalise power

MUST-KNOW FACTS

1. The 1935 Act is a major source, not the philosophical foundation, of the Constitution.
2. Borrowing does not imply copying without transformation.
3. A balanced Mains answer must discuss both continuity and rupture.
4. Popular sovereignty is the central break from colonial constitutionalism.

UPSC TRAPS

WRONG: The Constitution is merely a copy of the 1935 Act.

CORRECT: It borrowed substantial administrative detail but transformed legitimacy, rights, representation and accountability.

WRONG: Independence required rejection of every colonial institution.

CORRECT: Many institutions were retained, adapted and subjected to democratic constitutional control.

WRONG: Colonial constitutional reforms steadily created full democracy.

CORRECT: They expanded participation gradually while preserving imperial executive supremacy.

CONNECTIONS TO THE REST OF POLITY

Historical feature	Linked constitutional topic	Why it matters
1935 federal design	Federalism and Seventh Schedule	Explains institutional ancestry and central bias
Colonial Governors	Governor and Centre-State relations	Frames discretion and constitutional-head debates
Federal Court	Supreme Court and judicial review	Shows evolution of constitutional adjudication
Civil-service competition	UPSC and services	Connects merit recruitment with institutional independence
Communal electorates	Representation and secular democracy	Explains rejection of separate electorates
1947 sovereignty	Constituent Assembly	Establishes legal freedom to frame and repeal laws

MAINS ANGLE

Suggested thesis: Indian constitutionalism was a natural culmination of institutional development under British rule only in an administrative sense; normatively, it was a democratic repudiation of colonial sovereignty.

STUDY LINK

Polity -> Historical Background -> Salient Features -> Federalism -> Governor -> Judiciary